STANDARD OPERATING PROCEDURE			G-4510
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **12/09/25**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL	RESOURCES			
SUBJECT NEBRASKA CRIMINAL JUSTICE INFORMATION SYSTEM (NCJIS) & CRIMINAL JUSTICE INFORMATION SERVICES (CJIS)			CROSS REFERENCE	

I. Purpose:

The purpose of this policy is to ensure the proper use of Nebraska Criminal Justice Information System (NCJIS) and proper use of CJIS (Criminal Justice Information Services).

II. Policy:

The Nebraska Criminal Justice Information System is a secure web site allowing access to information provided by criminal justice agencies on state and local levels within the State of Nebraska. The information is provided through a cooperative project under the Nebraska Crime Commission. The purpose of the web site is to provide criminal justice agencies with information to improve public safety and enhance the performance of their official duties. The sensitive nature of the information necessitates that users comply with the Nebraska Crime Commission requirements.

All of the FBI Criminal Justice Information Services (CJIS) provides data necessary for law enforcement agencies to perform their mission and enforce the laws, including but not limited to biometric, identity history, person, organization, property, and case/incident history data. The National Crime Information Center (NCIC) is a nationwide, computerized information system established as a service to all criminal justice agencies – local, state, and federal. NCIC stores Criminal Justice Information (CJI) which can be queried by appropriate federal, state, and local law enforcement and other criminal justice agencies. The goal of NCIC is to help the criminal justice community perform its duties by providing and maintaining a computerized filing system of accurate and timely documented criminal justice information. NCIC a CJIS system that is utilized by the Sarpy County Sheriff's Office.

III. Procedures:

A. **Sarpy County NCJIS Agency Administrator:** The Sheriff shall appoint one person to function as the NCJIS Agency Administrator. The Agency Administrator shall:

1. Attend initial NCJIS training provided by the Nebraska Crime Commission.

2. Be the point of contact between Sarpy County NCJIS users and the Nebraska Crime Commission NCJIS Project Manager.

3. Manage and submit applications for individuals requesting direct electronic access to NCJIS.

4. Assign and secure User IDs and passwords.

5. Ensure proper security of all hardware, communication lines, and automation devices used to access NCJIS.

6. Report violations and problems, in a timely manner, to the NCJIS Project Manager in writing or by electronic mail.

7. Prepare and maintain written instructions on NCJIS use and monitor change notices for revisions to procedures and policies.

8. Provide or oversee user training in proper NCJIS use.

9. Periodically review user access and dissemination records.

10. Maintain a list of current and past certified users. This list shall be reviewed annually.

11. Remove access from users when no longer needed.

B. **Sarpy County NCJIS Users**: All users shall adhere to the following procedures.

1. Users shall contact the Agency Administrator regarding any problems or malfunctions with NCJIS.

2. Users shall safeguard their User IDs and passwords. Users shall not allow any other person to use their IDs or passwords.

3. Workstations shall not be left unattended when logged onto NCJIS.

4. Data shall only be requested from NCJIS for official purposes. NCJIS maintains a record of all queries by users. All records checks are subject to justification.

5. Each user shall be required to maintain the Sheriff's Office log of printed NCJIS materials that have been provided to other personnel, outside of the Sheriff's Office. Access and dissemination are restricted by the NE Crime Commission. Misuse of NCJIS material may result in loss of access by the individual user and possibly the entire agency.

6. All printouts of NCJIS data shall be shredded when no longer needed.

7. Users shall not alter the format or content of any NCJIS data (to include information identifying data as being from NCJIS). Identifiers on DMV photographs obtained through NCJIS and utilized for official purposes i.e., photo line-ups, may be removed.

C. **Use and Dissemination of NCJIS Data:** All use and dissemination of NCJIS data shall comply with the following:

1. Material must be for official purposes only. It may be used to verify background information for Sheriff's Office and County Human Resource hiring, but shall not be used for employment consideration for any other agency or entity. The general public shall not be provided information from NCJIS. Patrol Criminal Histories (PCH) shall not be provided to non-criminal justice agencies.

2. Material shall not be provided to entities other than law enforcement, county attorney, courts, etc. Entities desiring access should be directed to the Nebraska Crime Commission. NCJIS is not public record information.

3. Any printed NCJIS data disseminated outside of the Sheriff's Office shall be recorded on the Sheriff's Office log by each Sarpy NCJIS user. Dissemination logs shall contain what data was released, the name and agency of the recipient, the date and time and for what purpose.

4. All Nebraska State Patrol Criminal Histories disseminated outside of the Sheriff's Office must be logged.

5. NCJIS data does not provide probable cause to arrest.

6. Information is for official use only and shall not be released to the public. Personal or private use of information is strictly prohibited. Staff members in doubt of a possible use shall contact their supervisor or command officer prior to accessing these sources.

7. The information contained on the NCJIS website is for investigative/hiring purposes only and follow up may be needed to verify its validity and timeliness.

D. Department of Motor Vehicle Records: State and federal laws restrict the release, use, and redisclosure of driver and vehicle record information. Access to driver and vehicle records maintained by the State of Nebraska is conditioned on the user agreeing to abide by all state and federal laws governing driver and vehicle record information. Improper disclosure of motor vehicle information is a criminal offense.

1. Users shall only release personal information (driver's license number, license plate number, name, address, etc.) from a motor vehicle record to a member of a federal, state, or local governmental agency, including any court or law enforcement agency. The release shall be for the purpose of carrying out the function of the agency.

2. Users shall only release digital images and signatures to federal, state, or local law enforcement personnel. The release shall be for the purpose of carrying out the function of the agency or to assist another agency in carrying out its function.

E. User Access:

1. Due to a limited number of user positions available, prospective users shall access for NCJIS to the Agency Administrator with authorization from a division commander. If the user changes positions, new justification may be required to retain NCJIS access.

2. Once access has been approved by the NE Crime Commission, the Agency Administrator shall provide NCJIS training, usually with a current NCJIS user. The Nebraska Crime Commission does not review/approve Sheriff's Office user accounts. Granting NCJIS access to individual users within the Sheriff's Office is at the discretion of the Agency Administrator.

F. Sarpy County NCIC Users: All users shall adhere to the following procedures.

1. The Sarpy County Sheriff's Office utilizes NCIC for wanted persons and to obtain criminal histories.

2. Sarpy County Emergency Communications Department conducts all NCIC records checks for information about stolen property, missing or wanted person, and domestic violence protection orders; to get criminal histories, and to access the National Sex Offender Registry.

3. Only employees certified to access the NCIC shall use the mainframe terminals.

4. The information obtained from NCIC is confidential and shall be used by duly commissioned law enforcement officers and operated by trained personnel only.

5. This policy is not meant to restrict access to local records.

6. In order to maintain compliance with NCIC system requirements, Sarpy County Sheriff's Office NCIC Records are validated monthly. All unvalidated records are purged from NCIC if they are not validated by the required date.

7. Unauthorized use of NCIC system(s) could result in the revocation of the Sarpy County Sheriff's Office access to NCIC.

G. The Interstate Identification Index (III): III is an automated system that facilitates the interstate exchange of online criminal history record information between criminal justice agencies.

1. The Interstate Identification Index is accessed via the NCIC.

2. FBI regulations require the Sarpy County Sheriff's Office to provide a copy of procedures and applicable laws to all employees having access to, or requesting information from, the Interstate Identification Index to ensure appropriate and lawful use of the systems.

3. NCIC users shall complete the CJIS security addendum certification form and it will be maintained by Information Systems Technical Support.

4. NCIC also provides Comprehensive Criminal History (CCH) / (III) Information printouts.

a. The printouts may be used for these purposes:

1. Criminal Investigations

2. Law enforcement employment background checks

5. This service shall only be used to conduct official Sheriff's Office business. Any other use of this NICC function is in violation of federal law.

6. FBI guidelines require when employees are finished with a CCH printout, the document shall be destroyed by shredding.

7. All requests for CCH/III shall be submitted in writing to the NCIC operator.

H. Restrictions

1. The NCIC system shall only be used for investigative law enforcement purposes. Curiosity inquires are forbidden. The FBI and the Nebraska State Patrol perform audits covering administrative procedures, training procedures, and security of terminals and data, as well as a review for accuracy.

2. Supervisors shall address any NCIC issue with subordinates and report any deviations from procedures to the division commander.

3. Violations of this policy include but are not limited to:

a. Accessing data to which the individual has no legitimate right.

b. Enabling unauthorized users to access data.

c. Disclosing data in a way that violates applicable policy, procedure, or relevant regulations or law.

d. Inappropriately modifying or destroying data.

e. Inadequately protecting restricted data.

f. Unauthorized access, copying, or dissemination of sensitive information (e.g., NCJIS Information, NCIC information, state criminal information, etc.).

g. Any violation of this policy may result in network removal, access revocation, corrective or disciplinary action, civil or criminal prosecution, and termination of employment.